

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #04	CCRB Case #: 201502928	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 04/02/2015 7:35 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/2/2016	Precinct: 52
Date/Time CV Reported Thu, 04/02/2015 8:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/17/2015 2:21 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edmundo Rivera	696	955382	PBBX
2. POM Eduard Solano	13719	955516	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Mahon	26892	955116	PBBX
2. POF Maria Imburgia	15286	954960	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Edmundo Rivera	Abuse: PO Edmundo Rivera stopped § 87(2)(b), § 87(2)(b), § 87(2)(b), and individuals.	A . Exonerated
B . POM Eduard Solano	Abuse: PO Eduard Solano stopped § 87(2)(b), § 87(2)(b), § 87(2)(b), and individuals.	B . Exonerated
C . POM Edmundo Rivera	Force: PO Edmundo Rivera pointed his gun at § 87(2)(b)	C . Exonerated

Case Summary

On April 2, 2015, Capt. Brian McCaughey, the Bronx Duty Captain, filed this complaint with IAB via telephone on behalf of an injured civilian, § 87(2)(b). The complaint was forwarded to the CCRB via IAB log #2015-9821. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

At approximately 7:35 p.m. on April 2, 2015, PO Edmundo Rivera, PO Eduard Solano, PO Brian Mahon and PO Maria Imburgia of the 52nd Precinct were informed by an unidentified individual that a large group of young males were acting in a disorderly fashion and smoking marijuana in the lobby of § 87(2)(b) in the Bronx. The investigation identified three of these males as § 87(2)(b), § 87(2)(b) and § 87(2)(b). As soon as the officers entered the building, several of the males, including § 87(2)(b), § 87(2)(b) and § 87(2)(b) ran up a staircase leading to the roof. PO Rivera and PO Solano pursued them, while PO Mahon and PO Imburgia remained in the lobby (**Allegations A and B**).

Upon reaching the roof, § 87(2)(b) and most of the other males turned to their right, and jumped onto the roof of the adjoining building. § 87(2)(b) and § 87(2)(b) however, turned to their left, running up towards a wall formed by the adjoining building on the other side. § 87(2)(b) and the other males ran downstairs in their adjoining building, leaving the rooftop. PO Rivera and PO Solano then came out onto the rooftop, encountering § 87(2)(b) and § 87(2)(b). Moments later, PO Rivera drew and pointed his gun at § 87(2)(b) (**Allegation C**).

§ 87(2)(b) then started peering over the side of the building. He then jumped over the side of the building. At first, § 87(2)(b) was dangling from the edge by one hand. § 87(2)(b) reached over and tried to pull § 87(2)(b) back up. PO Rivera then came up behind § 87(2)(b) and held him from behind. A few seconds later, however, § 87(2)(b) lost his grip and fell into the back alley behind the building, six stories below.

PO Rivera, PO Solano and § 87(2)(b) ran back downstairs. PO Rivera instructed PO Mahon to call an ambulance for § 87(2)(b). PO Mahon reported the incident over the radio. All four officers then ran into the back alley, where they found § 87(2)(b) lying on the ground. He was still breathing, but was not conscious. § 87(2)(b) was subsequently transported to § 87(2)(b).

§ 87(2)(a) PBH §18(6)

§ 87(2)(b)

Mediation, Civil and Criminal Histories

This case was not suitable for mediation. A notice of claim request was submitted to the Comptroller's office on June 12, 2015. It will be included in the case file upon receipt. § 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b), § 87(2)(b) or § 87(2)(b) (See Board Review: Civilian CCRB Histories).

- Both PO Rivera and PO Solano have been members of the service for one year, and there are no substantiated CCRB complaints against either of them. Neither officer has been the subject of any prior CCRB allegation.

Potential Issues

- On April 20, 2015, a video subpoena was delivered directly to § 87(2)(b), the management company that owns § 87(2)(b). The company stated that the building's security cameras were not functioning at the time of the incident, and that no footage was available.
- § 87(2)(b) was the only civilian present on the roof when § 87(2)(b) fell. During an April 24, 2014 telephone call, § 87(2)(b) declined to provide a statement to the CCRB regarding the incident. He stated that he no longer wanted to speak of the incident, after having done so extensively with IAB. A please call letter was subsequently sent to § 87(2)(b)'s parents (as § 87(2)(b) is a minor) to inform them that the CCRB would like to directly obtain § 87(2)(b)'s testimony if he changed his mind.
- Regardless of the absence of an official, sworn CCRB statement from § 87(2)(b), IAB conducted two interviews with § 87(2)(b) on the night of the incident. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- The SPRINT for the incident indicated that several residents of § 87(2)(b) called 911 to report the incident. During the initial callout, IAB investigators contacted each of the individuals who had called 911 and took brief statements. None of these individuals witnessed the pursuit or the fall itself. Instead, they were only alerted to the incident by the commotion occurring after § 87(2)(b)'s fall (See Board Review: NYPD Documents – SPRINT and IAB Callout). § 87(2)(g)
§ 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

It is undisputed that § 87(2)(b) jumped from the roof and then fell from the ledge of the roof to his death. § 87(2)(b) was interviewed twice by IAB on April 2, 2015 (See Board Review: § 87(2)(b)'s Testimony). § 87(2)(b) denied that he or either officer made any physical contact towards § 87(2)(b) before he went over the edge, stating that the officers were standing several feet away at the time and that PO Rivera was verbally attempting to keep § 87(2)(b) calm due to § 87(2)(b)'s nervous demeanor.

PO Rivera and PO Solano were interviewed at the CCRB on June 11, 2015 (See Board Review: MOS Statements). Both officers stated that they were standing at least ten feet away from § 87(2)(b) when he went over the edge. Both officers stated that § 87(2)(b) jumped off of the building, § 87(2)(g)
§ 87(2)(g)

§ 87(2)(g) it is undisputed that § 87(2)(b) was not pushed, forced, or otherwise compelled off the roof by any external force, including by PO Rivera or PO Solano.

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Allegation A: Abuse of Authority – PO Edmundo Rivera stopped § 87(2)(b), § 87(2)(b), § 87(2)(b), and individuals.

Allegation B: Abuse of Authority – PO Eduard Solano stopped § 87(2)(b), § 87(2)(b), § 87(2)(b), and individuals.

The following facts are undisputed.

PO Rivera, PO Solano, PO Mahon, and PO Imburgia received a report that numerous teenagers were behaving in a disorderly manner and smoking marijuana in the lobby of § 87(2)(b). Within minutes, the four officers responded to the location and entered the lobby. Moments before the four officers entered the lobby, § 87(2)(b), § 87(2)(b), § 87(2)(b), and several other unidentified teenagers were inside the lobby smoking one or more marijuana joints.

When the four officers entered the lobby, they did not specifically see the marijuana joints. However, they detected a strong odor of marijuana emanating directly from the group of teenagers.

Before the officers could say anything, the group fled from the officers, traveling up a flight of stairs, towards the roof of the housing complex. PO Mahon and PO Imburgia remained in the lobby. PO Rivera and PO Solano pursued the group up the stairwell.

Flight, when combined with specific circumstances indicating that a suspect might be engaged in criminal activity, provides officers with legal justification to pursue the suspect. People v. Nunez, 2013 N.Y. App. Div. LEXIS 7700 (App. Div. 2nd Dept, 2013) (See Board Review: Legal Reference).

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§ 87(2)(g), it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C: Force – PO Edmundo Rivera pointed his gun at § 87(2)(b)

In both of his IAB interviews, § 87(2)(b) confirmed that PO Rivera pointed his gun at § 87(2)(b) while both he and § 87(2)(b) were on the roof. PO Rivera acknowledged drawing his gun, but did not recall pointing it. PO Solano, who was directly behind PO Rivera, did not recall if PO Rivera ever removed his gun from his holster.

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§ 87(2)(g) his testimony to IAB in regards to what occurred on the rooftop. This testimony is summarized, in sum and substance, below.

As § 87(2)(b) and § 87(2)(b) reached the rooftop, both heard PO Rivera and PO Solano climbing the stairwell and ordering them to stop. § 87(2)(b) and § 87(2)(b) were standing about three feet from the ledge at the time.

By § 87(2)(b)'s own classification, § 87(2)(b) was clearly nervous. He was “moving his shoulders back and forth” as the officers entered the rooftop, and § 87(2)(b) appeared to be looking for some kind of escape. At that point, § 87(2)(b) without requesting permission or explaining his actions, reached into his pockets, possibly to put his cell phone away.

Following this action, PO Rivera, who as about 14 feet away, pointed his gun at § 87(2)(b) and began to approach him. As he approached § 87(2)(b) PO Rivera verbally attempted to keep § 87(2)(b) calm. It is at this point that § 87(2)(b) jumped off the rooftop, briefly maintaining a grip on the ledge. Both officers approached, as did § 87(2)(b) and attempted to pull § 87(2)(b) back to the rooftop. However, § 87(2)(b) lost his grip and fell to his death.

Both PO Rivera and PO Solano did not recall what, if any movements, § 87(2)(b) made on the roof, but, like § 87(2)(b) confirmed that § 87(2)(b) jumped off the rooftop, latched onto the ledge, and fell to his death.

Regardless of the officers' inability to recall § 87(2)(b)'s exact movements prior to the fall, both expressed a distinct fear for their safety while on the rooftop, § 87(2)(g) they justified this fear by stating that they were chasing a large group of suspects onto an unfamiliar roof, that they had lost sight of the suspects during the pursuit, and that it was dark on the rooftop.

An officer is granted broad discretion to draw and display their firearm whenever he or she feels that his or her life, or the life of another, is endangered. PD v. Gliner, OATH Index 955/00 (See Board Review; Legal Reference).

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it is recommended that
Allegation C be closed as **exonerated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date